

Sunil Dewangan vs The State Of Chhattisgarh on 14 October, 2022

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NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

Order Reserved on : 29.09.2022

Order Delivered on : 14.10.2022

CRR No. 991 of 2018

Sunil Dewangan, S/o Girish Dewangan, Aged About 30 Years,
R/o - Renu Girl, Opposite H 01/110, Sector - 1, D.D. Nagar
(Deendayal Upadhyay Nagar), Raipur, District - Raipur,
Chhattisgarh. ----- Applicant

Versus

1. The State of Chhattisgarh, Through Police Station - City Kotwali,
Durg, District - Durg, Chhattisgarh.
2. Rani Dewangan, D/o Late Panchuram Dewangan, Aged About
28 Years, R/o Near Kejumill Chowk, Naya Para Durg, District -
Durg, Chhattisgarh (Complainant). ----- Non-Appllicants

For Applicant : Shri D.K. Gwalre, Advocate

For Non-Appllicant No.1/State : Shri Shakti Singh Thakur, P.L.

For Non-Appllicant No.2/Complainant : Shri Ajay Shrivastava, Advocate

Hon'ble Shri Justice Rakesh Mohan Pandey

CAV ORDER

- 1) This Criminal revision is filed against the order dated 06.01.2018
passed in Sessions Trial No. 102/2017 by the Additional
Sessions Judge, FTC, Durg, whereby charge for the offence
under Section 376 of IPC has been framed against the present
applicant on allegation that from 14-02-2015 to 02-03-2016 the
present applicant committed sexual intercourse upon the person

of the prosecutrix against her will or without her consent knowing very well that he is not the husband of the prosecutrix or without consent and that her consent is given because as she believes herself lawfully married to the applicant/accused.

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- 2) The case of the prosecution in brief is that non-applicant No.2 lodged a written complaint on 24.12.2016 to the Inspector General of Police (IGP), Durg alleging that she has been physically abused by the applicant on pretext of marriage on various occasions, thereafter he refused to marry her even after birth of one female child in the year 2016. The complaint was forwarded to the concerned Police Station on 24.12.2016 and consequently Crime Number 86/2017 was registered by the P.S. City Kotwali on 10/02/2017. In the course of investigation the respondent No.2 was medically examined, birth certificate of

child was seized, statement of witnesses under Section 161 of CrPC was recorded and thereafter on 24.05.2017 charge-sheet was filed before the Jurisdictional Court. The case was registered as ST No. 102/2017 in the Court of ADJ/FTC, Durg. The learned trial Court vide order dated 06.01.2018 turned down the argument advanced against framing of charge for the offence punishable under Section 376 of IPC against the present applicant.

- 3) Learned counsel for the applicant submits that on 10.03.2016 vide Ex.P/4 complaint was registered by the non-applicant No.2 before the PS Mahila Thana, Durg making allegations that her husband Sunil Dewangan (present applicant), mother-in-law Smt. Renuka Dewangan and father-in-law Girish Dewangan compelled her to leave her matrimonial house and kept her one month old daughter with them. In para-1 of the complaint she has specifically stated that she was married to the present applicant on 15.02.2015. Learned counsel for the applicant further submits that Mahila P.S. took up the matter for the counseling and summoned the parties on 17.03.2016 wherein she has stated that she was being ill-treated by her husband and in-laws. Further, the counseling proceeding resulted into compromise. Learned counsel for applicant draws attention of this Court to the application Ex-P/7 moved by non-applicant No.2 under Section 125 of CrPC where she has shown present applicant as her husband and claimed maintenance of Rs. 7,000/-. In the statement, independent witnesses namely Niraj Soni and Sheshnarayan Dewangan have stated that the applicant and non-applicant No.2 were residing as husband and wife from since February 2015

and out of their wedlock a child was born, whereas Non-applicant No.2, has made allegations that on 14.02.2015 she alongwith other family members had gone to a social program where the present applicant was also present and when the relatives were in market, he committed forcible sexual intercourse with her. It continued for a considerable period of time because of which she got pregnant and delivered a child, thereafter the applicant refuse to marry her. Learned counsel for the applicant further submits that non- applicant No.2 herself has stated that present applicant is her husband, they stayed as husband and wife for a considerable period, there is a child through their cohabitation, she is major lady having knowledge of ups and downs of such relationship but she never raised any objection, therefore, the offence punishable under Section 376 of IPC is not made out.

4) On the other hand, learned State counsel as well as learned counsel for non-applicant No.2 submit that the learned trial Court has framed charge for the offence punishable under Section 376 of IPC after evaluating the material available on record and prima-facie case is made out against the present applicant and in reply to the application under Section 125 of CrPC he denied the factum of marriage between them. The offence is heinous one, therefore, the order passed by the learned trial Court as well as charge framed by it does not warrant any interference.

5) Learned counsel for the non-applicant No.2 has placed reliance upon the matter of Lakesh Kumar Chandradev V. State of Chhattisgarh And Others, passed by this Court in CRMP No. 498 of 2022 on 21.07.2022 and Onkar Nath Mishra And Others V. State (NCT of Delhi) And Another, passed by the Hon'ble Supreme Court, reported in (2008) 2 Supreme Court Cases 56 and submits that framing of charge is not an interlocutory order nor final order. He further submits that at the stage of framing of charge the court is not caused to go into valuation of the material available on record.

6) I have heard, learned counsel for the parties and perused the record. Perusal of charge-sheet shows that the present applicant has committed sexual intercourse on 14.02.2015 upon the prosecutrix, thereafter they stayed in hotel in Jagannathpuri where non-applicant No.2 was accepted as wife in a temple by the present applicant. After some time she became pregnant and gave birth to a child on 08.02.2016 and thereafter the applicant refused to marry her. In the medical report no injury was found and doctor has opined that no definite opinion can be given regarding recent sexual intercourse. Birth certificate of a female child was seized in which name of the present applicant is mentioned as husband of the non-applicant No.2. The statement of the non-applicant, her mother and her brother and sister, supports the contention of statement of the non-applicant No.2, whereas, the independent witnesses have categorically stated that the applicant and non-applicant No.2 were residing as husband and wife and out of their wedlock non-applicant No.2 gave birth to a female child.

7) Further the documents annexed with this revision i.e. written complaint lodged by the non-applicant no.2, where she has stated that she is wife of the applicant and she was being ill treated by her husband and in-laws as well as application moved under Section 125 of CrPC establish that she has claimed maintenance on the ground that she is wife of the present applicant though factum of marriage has been denied by the present applicant which is depicted in the order passed by the learned Family Court annexed alongwith reply filed by the non- applicant No.2.

8) The first issue for consideration would be whether the documents filed by the applicant can be looked into in case of quashing of the charge. The Hon'ble Supreme Court in case of *Rajiv Thapar And Others Vs. Madan Lal Kapoor* (2013) 3 SCC 330 while examining the issue held as under:-

"29. The issue being examined in the instant case is the jurisdiction of the High Court under Section 482 of the Cr.P.C., if it chooses to quash the initiation of the prosecution against an accused, at the stage of issuing process, or at the stage of committal, or even at the stage of framing of charges. These are all stages before the commencement of the actual trial. The same parameters would naturally be available for later stages as well. The power vested in the High Court under Section 482 of the Cr.P.C., at the stages referred to hereinabove, would have far reaching consequences, inasmuch as, it would negate the prosecution's/complainant's case without allowing the prosecution/complainant to lead evidence. Such a determination must always be rendered with caution, care and circumspection. To invoke its inherent jurisdiction under Section 482 of the Cr.P.C. the High Court has to be fully satisfied, that the material produced by the accused is such, that would lead to the conclusion, that his/their defence is based on sound, reasonable, and indubitable facts; the material produced is such, as would rule out and displace the assertions contained in the charges levelled against the accused; and the material produced is such, as would clearly reject and overrule the veracity of the allegations contained in the accusations levelled by the prosecution/complainant. It should be sufficient to rule out, reject and discard the accusations levelled by the prosecution/complainant, without the necessity of recording any evidence.

For this the material relied upon by the defence should not have been refuted, or alternatively, cannot be justifiably refuted, being material of sterling and impeccable quality. The material relied upon by the accused should be such, as would persuade a reasonable person to dismiss and condemn the actual basis of the accusations as false. In such a situation, the judicial conscience of the High Court would persuade it to exercise its power under Section 482 of the Cr.P.C. to quash such criminal proceedings, for that would prevent abuse of process of the court, and secure the ends of justice.

30. Based on the factors canvassed in the foregoing paragraphs, we would delineate the following steps to determine the veracity of a prayer for quashing, raised by an accused by invoking the power vested in the High Court under Section 482 of the Cr.P.C.:

30.1. Step one: whether the material relied upon by the accused is sound, reasonable, and indubitable, i.e., the material is of sterling and impeccable quality?

30.2. Step two: whether the material relied upon by the accused, would rule out the assertions contained in the charges levelled against the accused, i.e., the material is sufficient to reject and overrule the factual assertions contained in the complaint, i.e.,

the material is such, as would persuade a reasonable person to dismiss and condemn the factual basis of the accusations as false.

30.3. Step three: whether the material relied upon by the accused, has not been refuted by the prosecution/complainant; and/or the material is such, that it cannot be justifiably refuted by the prosecution/complainant?

30.4. Step four: whether proceeding with the trial would result in an abuse of process of the court, and would not serve the ends of justice?

30.5. If the answer to all the steps is in the affirmative, judicial conscience of the High Court should persuade it to quash such criminal proceedings, in exercise of power vested in it under Section 482 of the Cr.P.C. Such exercise of power, besides doing justice to the accused, would save precious court time, which would otherwise be wasted in holding such a trial (as well as, proceedings arising therefrom) specially when, it is clear that the same would not conclude in the conviction of the accused."

9) The case of the Rajiv Thapar (supra) has been considered and relied on by the Hon'ble Supreme Court in case of Prashant Bharti V. State of NCT of Delhi reported in 2013(9)SCC 293, wherein it has been held that if the steps given in the case of Rajiv Thapar stand satisfied, the charge-sheet and order of framing of charge can be quashed.

10) Present is not a case where false promise of marriage was made and bare perusal of contents of FIR, statements of the witnesses, documents filed by the applicant would go on to show that the applicant and the non-applicant No.2 had performed marriage though marriage may have not been performed in accordance with the Section 5 of Hindu Marriage Act but the factum of marriage cannot be denied. Further the Non-applicant No.2 stayed alongwith the present applicant for considerable period of time, she gave birth to a child, they were recognized as husband and wife in society and consequently the present FIR has been lodged. Therefore, entire upsetting is turned as false promise of marriage, there is no allegation in FIR that the applicant committed sexual intercourse with intent to deceive her. The consent of the non-applicant No.2 was based on miss-conception of fact. In this case, the complainant and the accused lived for a long period of 8 years and complaint was made that the accused pretended to live with her on false promise of marriage and thereafter, he tried to escape from her. When the parties live together like a married couple in such circumstances, it is difficult to sustain the charges leveled against the applicant, though the documents filed cannot be considered at the time of the framing of charge but if the steps given in the case of Rajiv Thapar are satisfied, the material placed by the applicant can be looked into. Factual details referred in the forgoing paragraphs are being summarized herein below:-

i) applicant No.2 alongwith her mother had gone to attend the social gathering, where she met the present applicant and on the same day, she was subjected to rape and she returned back to her house.

ii) On 12.03.2015 the present applicant again visited the house of the non-applicant No.2 and in absence of her mother and brother, he again committed sexual intercourse with her.

iii) The present applicant and the non-

applicant No.2 went to Jagannathpuri where they stayed in a hotel and she was accepted as wife by the applicant in a temple and again he committed sexual intercourse with her.

iv) They stayed in Pune for long weeks in the house of sister of the present applicant.

v) They belong to same caste.

vi) Victim became pregnant and on 08.02.2016 and she gave birth to a female child. Thereafter, the present applicant refused to marry her.

11) Now coming to the documents i.e. written complaint dated 10.03.2016 lodged in Mahila thana, Durg wherein she stated that she was married to applicant on 15.02.2015 and thereafter she gave birth to a child on 08-02-2016 in Sai Nursing Home, Raipur. She has further alleged that her husband and in-laws compelled her to leave the matrimonial house and kept the child with them. In the counseling proceeding also she has admitted that the present applicant is her husband.

12) In application filed u/s. 125 of CrPC non-applicant No.2 has stated in para 1, 2 that they were married on 15.02.2015 according to Hindu rites and rituals and they are living as husband and wife. The documents filed by the applicant has not been refuted by the non-applicant No.2 by filing reply and charge-sheet has been filed only on the basis of application of the non-applicant No.2. On consideration of the facts and circumstances of the case stated above the steps given by the Hon'ble Supreme Court in case of Rajiv Thapar (supra) stand satisfied, therefore, the Final Report (Annexure-P/3) and charge framed by the learned trial Court dated 06.01.2018 for the offence punishable under Section 376 of IPC are hereby set- aside.

13) With the aforesaid observation (s), this petition stands disposed off.

Sd/-

(Rakesh Mohan Pandey) Judge Nadim